

John Seidell

Always to be remembered

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corporation in which such mountain or hill may lie, for a writ, in the nature of a writ of ad quod damnum; of which application notice shall be given to the proprietors of such mountain or hill through which the subterranean right of way is to be, in the manner prescribed by the second section of chapter sixty-three. If the court on hearing the matter think it proper, it shall issue the writ accordingly, directed to the sheriff of the same county, who shall execute it in the same manner, and like proceedings shall be had thereupon as are prescribed in the third, fourth, fifth and sixth sections of said chapter sixty-three, so far as the same are applicable. If the leave prayed for be granted, the applicant shall, before he proceed therein, pay or secure to the satisfaction of the parties entitled thereto the compensation ascertained by the jury and all the costs of the inquest, and shall make and keep open such subterranean way as he is allowed to make at his own expense.

CHAPTER LIII.

COUNTY LEVIES.

Sec.		Sec.	
1.	On how much of county, levy is ordered by county court.	12.	How sheriff credited for such list.
2.	Who subject to levies; who exempt.	13.	Clerk to send list of delinquent land to auditor.
3.	When and how sum to be levied for, ascertained.	14.	Levies a lien on land.
4.	Tax on state bonds by counties and corporations.	15.	Auditor of public accounts to keep record thereof. How such levies may be paid into treasury. Sections of chapter 37 applicable to this.
5.	How subjects of levy prescribed by a special order.	16.	Levies received into treasury to be paid to county.
6.	Exhibit of county expenditures to be published annually.	17.	Sums due individuals out of levy, when paid; how they may be recovered.
7.	Supersedes to an order for a levy	18.	When and how sheriff to settle with county.
8.	To whom clerk to deliver copy of order. Commissioner's duty thereon.	19.	Forfeitures under this chapter go to the county.
9.	Sheriff's duties to collect the levies; how levy may be corrected.	20.	Certain statutes not repealed, concerning levy on dogs, &c.
10.	Certain sections of 36th chapter applicable to county levies.		
11.	Sheriff to return list of delinquents.		

When and how levy is ordered.

1. So much of every county as is without the limits of a town that provides for its poor and keeps its streets in order, shall be levied upon by the court of such county to raise the money with which the county is chargeable. 2 R. C. p. 266, c. 239, § 6. 1834-5, p. 62, c. 77, § 12. 1836-7, p. 81, c. 87, § 3.

2. The male persons above the age of sixteen years and the female slaves above that age that may be in any county without such limits, shall be subject to the levies for such county, except such slaves and other persons as the court may exempt from taxes and levies because of age, infirmity or a charitable reason. 2 R. C. p. 62, c. 191, § 1, 2, 4, 6; p. 271, c. 239, § 23.

3. Annually in May or June, or as soon thereafter as may be, the court of each county, when a majority of the acting justices of the county is present, or when the justices shall have been summoned to attend to act upon the matter, shall make up in its minutes an account of all sums lawfully chargeable on the county which ought to be paid within one year, stating for what, how much and to whom such payment is to be made, and after taking into view whatever balance may appear due from the sheriff or collector, and all other sums due to the county which can 2 R. C. p. 63, § 6. 5 Call 139. 2 H. & M. 54. 3 Gratt. 247.

Writs of habeas corpus ad testificandum.

1849-50, p. 29,
c. 32

14. Writs of habeas corpus ad testificandum may be granted by any circuit court, or any judge thereof in vacation, in the same manner and under the same conditions and provisions as are prescribed by this chapter, as to granting the writ of habeas corpus ad subjiciendum, so far as the same are applicable.*

Title 49

COURTS AND JURIES.

- CH. 157. Of the county and corporation courts.
 158. Of the circuit courts.
 159. Of the district courts.
 160. Of the court of appeals.
 161. General provisions relating to the courts.
 162. Of juries generally.

CHAPTER CLVII.

OF THE COUNTY AND CORPORATION COURTS.†

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| <p><i>Sec.</i></p> <ol style="list-style-type: none"> 1. For what counties or corporations and by what justices. 2. } Hustings court for city of Richmond. Its 3. } terms. Grand jury terms. Criminals } to be remanded to judge. 4. Jurisdiction of hustings court. 5. Corporation court of Norfolk. 6. Corporation court of Petersburg. 7. Corporation court of Fredericksburg. 8. Corporation court of Lynchburg. 9. Corporation court of Staunton. 10. Corporation court of Williamsburg. 11. Corporation court of Winchester. 12. Corporation court of Danville. 13. Corporation court of Portsmouth. | <p><i>Sec.</i></p> <ol style="list-style-type: none"> 14. Presiding justices. How chosen. Vacancies filled. Classification of justices. 15. Terms of courts. Court, how constituted. How long terms may continue. Change of days for court. Clerk to send copy of order changing term to clerk of house of delegates. 16. General jurisdiction of county and corporation courts. 17. What matters are cognizable only at a quarterly term. 18. Jury terms of courts. 19. Practice of the courts. |
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* The words "the general court or" omitted; post. c. 158, § 37; also the words "by the one hundred and fifty-sixth chapter, title forty-eight of the Code of Virginia;" and in lieu of the latter words "this chapter" is substituted.

† For the origin of these courts, see ante, p. 243, note to c. 48, and Hen. Stat. vol. 1, p. 185 to 187, 224 and 272; they were styled monthly courts until 1642-3, when being reduced to the number of six yearly, they were called county courts. Id. 273. If occasion required, they were held oftener than every two months. Id. 305, 448, 462. In 1661-2, a precise day of each month was fixed for the sessions. Id. vol. 2, p. 70. In 1634, when the country was divided into eight shires, it was provided that one of the council should attend and assist in each court of shire. Id. vol. 1, p. 224. In 1661-2, it was enacted that the governor and one of the council, or, if the governor was hindered, two of the council for every river yearly in August should sit judge in all the county courts and determine causes in them by action or reference from a preceding court in the county; but no councillor was to go to the circuit on the river wherein he inhabited. Id. vol. 2, p. 64, 5. Appeals made after the general court in March were referred to the governor or itinerary councillors in the circuit from whose sentence there might be an appeal to the general court or the assembly. Id. 65. The act for itinerary judges was soon repealed, and the councillors disabled from voting or determining any matter in the county courts. Id. 179, 358.

The act of 1705 required the county courts to be held monthly according to the ancient usage, and provided that they should consist of eight or more justices for every court, four of whom should be sufficient to hear and determine causes. Id. vol. 3, p. 504, 5. In 1748 it was provided that there should be only four courts in every year in each of the counties of Brunswick, Fairfax, Lunenburg, Frederick, Albemarle and Augusta. Id. vol. 6, p. 201. This was changed as to some of these counties upon their division. Id. vol. 7, p. 420. In October 1785, the act for reforming the county courts established in each county quarterly terms for certain classes of cases, and terms in the other months for other business. Id. vol. 12, p. 32, 467. The several acts concerning the county and other inferior courts were reduced into one by the act of 1792, in 13 Hen. Stat. p. 449, and the act of 1819, in 1 R. C. c. 71, p. 244, at which page is a note of Mr. Leigh as to those courts. For the constitution and jurisdiction of these courts, see Const. Va. art. 6, § 25, 26, ante, p. 54.

County and corporation courts, how held.

1. For every county and* for every corporation in which the power of holding courts has been or shall be vested by law, there shall be a court called the court of such county or corporation. It shall be held by the justices of the county or corporation, or any four or more of them, except where it is otherwise expressly provided. 1 R. C. p. 244, c. 71, § 1, 9, 10, 11 1829-30, p. 100, c. 99, § 4 1841-2, p. 88, c. 82 1842-3, p. 47, c. 69

2. There shall continue to be a court for the city of Richmond, which shall be called "the court of hustings for the city of Richmond;" and the same shall be held by the mayor, recorder and aldermen of said city, or any four of them, except where otherwise provided; and also by a judge, to be called the "judge of the hustings court." 1852-3, p. 259, c. 365, § 2 1859-60, c. 169, 70, § 2 Post. c. 158, § 43

3. A term of the hustings court for the city of Richmond, not exceeding six days, shall be held by the mayor, recorder and aldermen in every month, at which shall be exercised all the jurisdiction, powers and duties of the court of hustings, except such as are expressly vested in and delegated to the said court when held by the judge aforesaid. The business of the said court, whether held by the mayor, recorder and aldermen or by the judge, shall be distributed between monthly and quarterly terms as now prescribed by law; but the judge may designate which of his terms shall be quarterly terms. A grand jury shall be summoned as now prescribed by law, to attend the terms of the said court held by the mayor, recorder and aldermen, in February, May, August and November. All criminals examined by the said court when held by the mayor, recorder and aldermen, if remanded for trial, shall be sent to the said court, at its terms held by the judge, and all depositions and recognizances shall be thereto returned. 1859-60, p. 315, c. 170, § 2 Post. § 18

4. The said court of hustings shall continue to have civil and criminal jurisdiction, and the said mayor, recorder and aldermen and judge shall each have the powers of a justice of the peace, not only within the corporate limits of the said city, but also for the space of one mile on the north side of James river, without and around said city, and every part thereof, including so much of the said river to low water mark on the shore of the county of Chesterfield, as shall be between two lines drawn due south from the eastern and western terminations of the one mile aforesaid, for matters arising within the same, according to the laws of the commonwealth.† 1859-60, p. 313, § 3

5. Hereafter the corporation court of Norfolk shall be held by the justices of said corporation, or any three or more of them, except where it is otherwise expressly provided. 1850-51, p. 31, c. 37, § 1

6. The mayor, recorder and aldermen of the city of Petersburg, or any three of them, shall have power to hold a court of hustings for said city. 1849-50, p. 206, § 62

7. There shall be a court for the corporation of Fredericksburg, which shall be called "the corporation court for the town of Fredericksburg," 1850-51, p. 176, c. 257, § 4

* The words "for each of the corporations of Richmond, Norfolk, Petersburg, Fredericksburg, Lynchburg, Staunton, Williamsburg, Winchester and Danville and" have been omitted, because special provisions have been made for each of these places, differing from the general provision and forming exceptions, which are inserted at the end of the section. See marginal references.

† The act provides for the election of members of the court of hustings on the first Wednesday in April annually; or in case of failure to hold the election on that day, then on such day afterwards as the council may direct. 1859-60, p. 313, 314, c. 169.

session of a county court thus elected, and at the first session of every such court after a general election, or so soon as may be, all the justices being summoned, the court shall classify the justices for the performance of their duties in court; and whenever a vacancy shall occur in any district, the justice elected to supply the vacancy shall occupy the place in said classification of the justice who preceded him.*

Terms of courts; court how constituted.

15. There shall be in each county of the commonwealth, in four of the months of every year, a quarterly term of every county court, and in every other month, a monthly term thereof, to be held at the times and with the jurisdiction, so far as is consistent with the constitution and this act, now prescribed by law. The number of justices necessary to constitute a court of oyer and terminer and a court of examination, shall be the same as now prescribed by law. In all civil cases, and in matters of county police, and in all other cases, except criminal, the presiding justice and two other justices of the county, or in the absence of the presiding justice, any three justices of the county, may constitute a court, except where it is now provided that more than three is necessary to constitute a court; in which case, the number now provided shall be necessary: provided also, that where a county levy is to be made, all the justices shall be summoned: provided moreover, that nothing herein contained shall be construed as repealing any of the laws now in force requiring the summoning of all the justices to give validity to any action of the court. Every such term of said courts may continue, if it be a monthly term, not exceeding six days, and if it be a quarterly term, not exceeding twelve days. The court may from time to time change the day for the commencement of the terms thereof or any of them, all the acting justices of the county or corporation being first summoned, and a majority concurring in such change. The clerk of such court, within thirty days after any such change, shall send a copy of the order making it to the clerk of the house of delegates, and if he fail to do so shall forfeit fifty dollars in every case in which the court of a county or corporation has, since the Code took effect, made an order, or shall hereafter make an order, changing the time for holding any quarterly term thereof, such order shall be deemed valid, provided all the acting justices of such county or corporation shall have been first summoned, and a majority concurred in such change.

Jurisdiction.

16. The court of a county or corporation shall have jurisdiction to hear and determine all cases at law or in chancery within such county or corporation which are now pending or may hereafter be brought in said court, except criminal causes against free negroes charged with felonious homicide, or any felony, the punishment whereof may be death, and against white persons, charged with any offence, the punishment whereof may be death or imprisonment in the penitentiary; and except civil causes to recover property or money, not of greater value or amount than twenty dollars, exclusive of interest, and except such cases as are by law

*For the compensation to justices, see ante, c. 48, § 1. Pay of presiding justice of Kanawha. Id. § 1.